1 Introduction

1.1 The Purposes and Aims of the BDCP

In accordance with Section 4.15 of the Environmental Planning and Assessment (EP&A) Act 1979, Burwood Council as the consent authority is required to take into consideration the relevant provisions of any Development Control Plan (DCP) in determining an application for development that requires consent in the Burwood Local Government Area (LGA) as established in an applicable environmental planning instrument. In most cases this will be the Burwood Local Environmental Plan (BLEP) 2012 but also may be a State Environmental Planning Policy (SEPP).

This DCP has been prepared in accordance with Section 3.43 of the EP&A Act and clauses 16 – 21 of the EP&A Regulation 2000. Its purposes are:

To make more detailed provisions on matters that may be prescribed by a DCP that help achieve the purpose and aims of the BLEP 2012.

- To identify additional requirements for Development Applications to be advertised or notified.
- To provide for other things permitted by the EP&A Act to be prescribed by a development control plan.
- The aims of this DCP are:
- To provide a clear framework of detailed provisions to be complied with or taken into account in development assessment for the assistance of the community and the development industry.
- To help maintain and enhance the quality of the natural and built environments in the Burwood LGA through the development assessment process.
- To improve the environmental and social sustainability of development.
- To increase the participation of the community in development assessment decisions.

1.2 Citation

This document shall be formally cited as the Burwood Development Control Plan, or in brief “the BDCP” or “the DCP”.

1.3 Land and Development Covered by this Plan

The BDCP applies to all the land located in the Burwood LGA in accordance with the BLEP 2012 Land Application Map. The BDCP must be taken into account by the consent authority in determining Development Applications within the Burwood LGA.

This BDCP does not apply to exempt development or to applications for Complying Development Certificates under Division 4.5 of Part 4 of the Environmental Planning and Assessment Act 1979.

1.4 Date on Which the BDCP Takes Effect

This Plan was adopted by Burwood Council on 12 February 2013 and came into effect on 1 March 2013.

1.5 Amendments to the BDCP

Amendments may be made to the BDCP over the course of its operation. Details of the amendments are as follows:

General Description of the Amendment	*Adoption Date*	*Effective Date*
Amendment No. 1: Review of the BDCP	17 February 2014	4 March 2014
Amendment No. 2: Awning Controls	23 February 2015	10 March 2015
Amendment No. 3: Review of the BDCP	22 November 2016	6 December 2016
Amendment No. 4: Review of the BDCP	26 June 2018	1 August 2018
Amendment No. 5: Review of the BDCP	26 October 2021	15 November 2021
Amendment No. 6: Review of Section 5.11 of the BDCP	13 December 2022	22 December 2022
Amendment No.7: Repeal of Section 7 of the BDCP	13 December 2022	30 January 2023
Amendment No. 8: Amendments to Section 5.4 and ancillary controls in Section 3.9, 4.6 and 8.1.6	18 April 2023	26 April 2023
Amendment No. 9: Amendment to Section 6.1 of the BDCP	23 May 2023	9 June 2023
Amendment to No. 10: Amendment to Section 4.7	24 October 2023	27 October 2023
Amendment No. 11 to Section 3.3.2	25 March 2025	4 April 2025
Amendment No. 12 to Section 6.1 (Preservation of Trees and Vegetation)	28 October 2025	3 November 2025
Amendment No. 13 to Parts 3 and 4 to include Acoustic Attenuation Requirements	28 October 2025	3 November 2025
Amendment No. 14 to Parts 3 and 4 to include Liveability Improvements to Apartment Developments	17 February 2026	3 March 2026

1.6 Relationship to Other Plans and Policies

On its commencement the BDCP repeals and replaces any preceding DCP or DCP Part adopted by Council. The preceding documents will cease to have any effect.

The BDCP sits under and should be read in conjunction with the BLEP 2012. In accordance with the EP&A Act, a provision of a DCP has no effect to the extent that:

- it is the same or substantially the same as the provision of an Environmental Planning Instrument applying to the same land, or;
- it is inconsistent with a provision of any such instrument or its application prevents compliance with a provision of any such instrument.

Therefore, if there is any inconsistency between the BDCP and the BLEP 2012, the BLEP will prevail.

Development Applications are required to demonstrate alignment with Council's adopted strategic plans, policies, guidelines, and technical manuals relevant to the site or development type. Where variations are proposed, applicants must provide a justification demonstrating that the intent and objectives of the relevant policy or guideline are achieved to Council's satisfaction. In assessing proposals, Council will consider merit-based compliance with its adopted strategic plans, policies, and guidelines.

1.7 Structure of the BDCP

Part 1 Introduction

This Part identifies the purpose and statutory functions of the BDCP.

Part 2 Environmental Planning in the Burwood LGA

This Part outlines Burwood's broad planning context and Council's approach to environmental planning that underpins the BDCP. The general requirements for analysis, consideration and management of site requirements, and the locational context of development are established in this Part.

Part 3 Development Provisions for Centres and Corridors

This Part establishes the planning objectives and provisions to apply to different types of development in Burwood's business centres and the Parramatta Road corridor. This Part also deals with transport, parking, heritage and other matters related to development in centres and corridors. Council may apply the relevant provisions where a type of development covered by this DCP part is permitted in a non-business zone.

Part 4 Development Provisions for Residential Areas

This Part establishes the planning objectives and provisions to apply to different types of development in Burwood's residential zones. This Part also deals with transport, parking, heritage and other matters related to development in residential areas. Council may apply the relevant provisions where a type of development covered by this DCP part is permitted in a non-residential zone.

Part 5 Other Development Provisions

This Part concerns other significant forms of development that may occur in several of the BLEP 2012's zones, and warrant specific statements of planning objectives and provisions.

Part 6 Environmental Management

This Part establishes Council's requirements for specific aspects of planning, development or the environment, such as tree preservation and waste management.

Part 7 Development Process Matters

This Part informs parties involved or interested in the Development Application and consent process of Council's requirements for determining Development Applications and the notification or exhibition of applications.

Appendices

The appendices to this DCP comprise:

Appendices that deal with detailed matters associated with a particular section, e.g. waste management.

Codes and best practice guidelines that have been adopted by Council and are referred to within the BDCP.